

■■ NEPALI STUDENTS IN SOUTH KOREA

Immigration & Illegal Work: Complete Survival Guide

For D-2 (Degree) & D-4 (Language Training) Visa Holders · Updated 2025–2026

340,000+

Nepali/foreign workers in South Korea (2024)

■2M–■30M

Fine range for unauthorised work

2nd Offence

Mandatory deportation

0 Tolerance

Construction, adult entertainment jobs

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■ THIS GUIDE IS FOR GENERAL INFORMATION ONLY. IT IS NOT LEGAL ADVICE. ALWAYS CONSULT A LICENSED ATTORNEY (HAENGJEONGSA / BYEONHOSA) FOR YOUR SPECIFIC CASE.

1. Understanding Your Visa Status (D-2 / D-4)

D-2 Visa — Degree Student

The D-2 visa is issued to students enrolled in an accredited Korean university for a full-degree programme (associate, bachelor's, master's, or doctorate). Your stay is tied directly to your academic enrolment. If you drop out, fail to maintain satisfactory grades, or have excessive absences, your visa can be cancelled — even before any work-related violation.

D-4 Visa — Language Trainee

The D-4 visa covers students attending Korean language institutes at universities. This visa carries **stricter work restrictions** than D-2. Most D-4 holders cannot work at all without explicit immigration approval, and the permit is harder to obtain. Many Nepali students arrive on D-4 first, intending to later convert to D-2 — making this period especially risky if you take any unauthorised work.

Feature	D-2 (Degree)	D-4 (Language)
Programme	University degree	Language institute
Part-time work	Allowed with permit	Very restricted
Max hours/week (TOPIK 3+)	Up to 25 hrs (semester)	Up to 10–25 hrs
Risk if caught working	Fine + possible deportation	Fine + likely deportation

2. Why So Many Nepali Students Work Illegally — The Real Context

Understanding the pressures Nepali students face is not an excuse for illegal work — but it is essential context for making informed decisions.

High pre-departure debt: Consultancy fees in Nepal often range from NPR 3–8 lakh (approx. ₩250,000–₩670,000 KRW). Students arrive owing money and feel compelled to earn immediately.

Cost of living in Korea: Monthly expenses in Seoul average ₩1.2M–₩1.5M (approx. NPR 105,000–130,000) excluding tuition. Legal part-time income is often insufficient.

Consultancy fraud: Many Nepali students report being misled by agencies in Kathmandu about visa rules, work rights, and programme costs. Some lose their student visa status before they even realise what happened.

Lack of information: Korean immigration rules change frequently and are complex. Many students simply do not know they are violating their visa conditions until it is too late.

Employer exploitation: Some Korean employers deliberately hire foreign students without permits, paying cash to avoid tax records — then students bear the full legal risk if immigration audits occur.

■ **Knowing the pressure you are under does NOT reduce the legal penalty. Immigration officers will still enforce the law. This guide helps you protect yourself.**

3. What Counts as Illegal Work

Under the **Immigration Control Act of South Korea**, any of the following situations constitute unauthorised employment for a D-2 or D-4 student:

- ✗ Working at ANY job without a valid S-3 Part-Time Work Permit attached to your visa
- ✗ Exceeding your permitted weekly hour limit (even by 1 hour)
- ✗ Working in a prohibited industry (construction, adult entertainment, hagwon/private English teaching)
- ✗ Working for an employer not listed on your permit
- ✗ Starting work before receiving final immigration approval (even if you applied)
- ✗ Working while your visa or permit is expired or under review
- ✗ Using someone else's identity or Alien Registration Card to obtain work
- ✗ Receiving any form of payment (cash, in-kind, bank transfer) for labour without a permit

✓ **IMPORTANT:** Getting paid in cash does NOT protect you. Korean immigration cross-references employer tax records with visa data during routine renewals. If your employer declares business expenses or files payroll using your name or ID number, immigration is automatically alerted.

4. Legal Part-Time Work: Hour Limits & Getting Your Permit

Weekly Hour Limits by Visa & TOPIK Level

Visa Type	TOPIK Level	Max Hours (Semester)	Max Hours (Vacation)
D-4 (Language)	Below TOPIK 2	Not permitted	Not permitted
D-4 (Language)	TOPIK 2+	10 hrs/week	25 hrs/week
D-2 (Bachelor's)	Below TOPIK 3	10 hrs/week	Unlimited
D-2 (Bachelor's)	TOPIK 3+	25 hrs/week	Unlimited
D-2 (Master's/PhD)	TOPIK 3+	35 hrs/week	Unlimited

How to Apply for an S-3 Part-Time Work Permit

Step 1 — Check eligibility: You must have your Alien Registration Card (ARC), valid D-2/D-4 visa, TOPIK Level 2+ (or KIIP equivalent), good academic standing, and 90%+ attendance.

Step 2 — Get university approval: Visit your international student office. They must confirm your eligibility and issue an enrolment certificate (■■■■■).

Step 3 — Apply via HiKorea or in person: Go to www.hikorea.go.kr (online) or book an appointment at your local immigration office. Processing takes 10+ days online; same-day in person (appointment required).

Step 4 — Wait for FINAL approval: DO NOT start work before receiving the official approval stamp on your ARC. Working while the application is 'pending' is still illegal.

Step 5 — Keep within limits: Track your weekly hours. Working even one hour over your limit is a violation.

■ **Prohibited jobs even WITH a permit: construction, adult entertainment, delivery riders/couriers, door-to-door sales, foreign language teaching at private academies (hagwons) or kids' cafes.**

5. If You Are Caught — Immediate Action Steps

■ **READ THIS SECTION CAREFULLY BEFORE ANYTHING HAPPENS. YOUR BEHAVIOUR IN THE FIRST MINUTES DETERMINES THE SEVERITY OF YOUR OUTCOME.**

✓ **DO: Stay calm and cooperate fully**

Do not run, physically resist, or argue with immigration or police officers. Resistance escalates the situation from an administrative matter to a criminal one.

✓ **DO: Identify yourself accurately**

Show your passport and ARC immediately when asked. Providing false information or someone else's documents is a criminal offence (not just a visa violation) and results in immediate jail and a permanent entry ban.

✓ **DO: Remain silent on specifics until you have legal representation**

You have the right to remain silent. Politely state: 'I would like to contact the Nepal Embassy and speak to a lawyer before answering questions.' Do not volunteer details about how long you have worked or how much you earned.

✓ **DO: Request consular notification**

Under the Vienna Convention on Consular Relations, you have the right to have the Embassy of Nepal in Seoul notified of your detention. Ask for this immediately. Embassy: +82 (02) 3789-9770 / 19, 2-gil Seonjam-ro, Seongbuk-gu, Seoul.

✗ **DO NOT: Flee or attempt to hide**

Fleeing converts your situation from a civil visa violation to a criminal matter. You will face jail time, criminal prosecution, AND a permanent ban from Korea.

✗ **DO NOT: Provide forged documents**

Using a fake passport, someone else's ARC, or altered documents is a criminal offence separate from your immigration violation. It guarantees deportation and a permanent entry ban with possible criminal prosecution in Nepal too.

✗ **DO NOT: Bribe officials**

Attempting to bribe Korean immigration or police is a serious criminal offence. It will make your situation dramatically worse.

6. Types of Orders You May Receive

■■■■■ — Departure Order [MODERATE]

You are ordered to leave South Korea voluntarily by a stated deadline. This is the less severe outcome. If you pay all fines and leave by the deadline, your chances of mitigating or waiving a future re-entry ban are significantly higher. You may still be able to re-apply for a Korean visa in the future.

■■■■■■■ — Forced Deportation Order [SEVERE]

You are placed under protective detention at an immigration detention centre and repatriated to Nepal as soon as arrangements are made. This is accompanied by a multi-year (typically 5-year or permanent) entry ban. Your ability to ever return to South Korea is severely or permanently compromised.

✓ **KEY STRATEGY:** If you receive a Departure Order, pay all fines and leave voluntarily before the deadline. Leaving legally with fines paid is your best chance of being able to re-enter Korea in the future.

7. Fines & Financial Penalties

Situation	Fine Range (KRW)	Approx. NPR
First offence — short-term violation	■2,000,000–■5,000,000	NPR 175,000–440,000
First offence — extended violation	■5,000,000–■15,000,000	NPR 440,000–1,310,000
Serious/repeat violation	Up to ■30,000,000	Up to NPR 2,620,000
Employer fine (for hiring you illegally)	■5,000,000–■20,000,000	NPR 440,000–1,745,000

Note: Exchange rate approx. ■1 KRW = NPR 0.087 (May 2026). Fines are at immigration officer discretion. Mitigating factors such as clean academic record, financial hardship, and voluntary cooperation CAN reduce the fine.

Can fines be reduced? Yes. A licensed administrative attorney (■■■■ — Haengjeongsa) or immigration lawyer (■■■■ — Byeonhosa) can compile documentation of your academic standing, clean criminal record, and genuine financial hardship to petition for a reduction. This is called a 'mitigation appeal' and is frequently successful for first-time, non-malicious violations.

8. The Two-Strike Deportation System

Strike	What Happens
1st Offence	Heavy fine (■2M–■15M). Future part-time work permit applications are restricted or permanently banned. Visa renewal becomes extremely difficult. Your university will likely be notified.
2nd Offence	Forced deportation — NO exceptions. Regardless of how minor the second violation is, you WILL be deported. A multi-year entry ban is imposed.

9. Zero-Tolerance Industries — Instant Deportation on First Offence

Working in the following sectors results in an **immediate forced deportation order on the very first offence**, regardless of how long you worked or whether you knew it was prohibited:

■ Construction (■■■)	Any physical labour on building or infrastructure sites.
■ Adult Entertainment (■■■)	Bars, clubs, massage parlours, or any venue associated with adult services.
■ Foreign Language Teaching	Teaching English or any foreign language at private academies (■■■ hagwon), kids' cafes (■■■■■), or as a private tutor. This is especially common and especially dangerous for Nepali students.
■ Delivery / Courier Services	Delivery riders (■■■), package couriers, or door-to-door salespeople.

10. How to Get Legal Help

Your university CANNOT legally intervene to reduce your fine, release you from detention, or cancel a deportation order. You need professional legal representation.

■■■ (Haengjeongsa) — Administrative Attorney

Handles administrative immigration cases. Less expensive than a full lawyer. Can draft written explanations, file mitigation appeals, and compile documentation. Search: '■■■ ■■■ ■■' (Foreign national administrative attorney Seoul).

■■■ (Byeonhosa) — Immigration Lawyer

Required for complex cases, criminal charges, or filing administrative lawsuits. Can file a 'stay of execution' to pause a deportation order while your case is reviewed. Search: '■■■ ■■■' (immigration lawyer).

Korea Legal Aid Corporation (■■■■■■■■■)

Provides free or subsidised legal aid for foreigners. Contact: 132 (from any Korean phone). Website: www.klac.or.kr. Available in multiple languages.

Migrants' Trade Union / Migrant Worker Support Centres

Non-governmental organisations that can refer you to lawyers and provide emergency support. Seoul Global Centre: +82-2-2075-4180.

Embassy of Nepal in Seoul

Can provide consular support, a list of Korean lawyers familiar with Nepali cases, and emergency documentation assistance. Contact: +82 (02) 3789-9770.

What Your Lawyer Can Do

Draft written explanations	Structure your official statement to show the violation was an accidental oversight rather than malicious intent — critically important for first-time offenders.
File for fine mitigation	Compile evidence of academic performance, clean criminal record, and genuine financial hardship to petition for a reduced fine.

Convert deportation order	Petition to convert a Forced Deportation Order (severe) into a Departure Order (moderate), giving you time to leave voluntarily and preserve future visa prospects.
File administrative appeal	File a stay of execution or administrative lawsuit to temporarily halt a deportation order while the case is legally reviewed.
Negotiate re-entry ban	In some cases, legal representation can reduce or waive an entry ban, especially for first-time, non-malicious violations.

11. Long-Term Consequences on Your Future

Visa Extension Blocked	An immigration violation record makes routine D-2/D-4 visa renewals extremely difficult. Immigration officers have full discretion to deny renewal even for minor past violations.
D-10 Job-Seeker Visa Denied	After graduation, you need the D-10 visa to legally job-hunt in Korea. A deportation or major fine on your record is typically grounds for automatic denial.
E-7 Professional Work Visa Blocked	The E-7 visa (for employed professionals) requires a clean immigration record. A prior deportation or serious violation will block this pathway permanently in most cases.
F-2 / F-5 Long-Term Residency Impossible	Any path to permanent residency in Korea requires a clean immigration record. A deportation order closes this door, likely permanently.
Tax Audit Risk	Even after leaving Korea, the Korean tax authority can pursue unpaid taxes on undeclared income. This can create complications if you ever try to re-enter or apply for a visa.
Permanent Entry Ban	Ignoring a departure order, failing to pay fines, or committing a second offence triggers a permanent entry ban. You will never legally enter South Korea again.
Record in Nepal	Deportation from South Korea is increasingly shared with Nepal's Foreign Employment Promotion Board and may affect your ability to obtain labour permits for other countries.

12. Nepal Embassy in Seoul — Your Lifeline

The Embassy of Nepal in Seoul is your most important point of contact if you are detained, facing deportation, or in crisis. Contact them immediately upon detention.

Address	19, 2-gil Seonjam-ro, Seongbuk-gu, Seoul, South Korea
Phone	+82 (02) 3789-9770 / +82 (02) 3789-9771
Working Hours	Monday–Friday (closed weekends and public holidays). Appointment recommended.
Website	kr.nepalembassy.gov.np
What they CAN do	Consular notification, emergency travel documents, referrals to lawyers, welfare checks on detained nationals, contact with your family in Nepal.
What they CANNOT do	Reduce your fine, cancel a deportation order, or intervene in Korean legal proceedings. Only a Korean-licensed attorney can do this.

13. How to Get Back on the Right Track

If you are currently working without a permit — act NOW before you are caught:

1. Stop immediately: Cease all unauthorised work today. Every additional day increases your legal exposure.

2. Self-report (consider carefully with a lawyer): In some cases, voluntarily reporting a past violation before being caught can significantly reduce penalties. Consult a lawyer or the Korea Legal Aid Corporation (132) before doing this.

3. Apply for your S-3 permit: Visit HiKorea (www.hikorea.go.kr) or your local immigration office. Get the legal permit so you can work going forward.

4. Raise your TOPIK level: Higher TOPIK scores unlock more working hours legally. Register for the next TOPIK exam at www.topik.go.kr.

5. Contact your university: Your international student office can connect you with scholarships, emergency financial assistance, or legal student jobs on campus.

6. Seek financial counselling: Korea's Migrant Worker Support Centres can advise on legitimate ways to manage your finances, including university-sponsored part-time work.

If you already received a departure order and are leaving Korea:

→ Pay ALL fines before your departure deadline — unpaid fines trigger a permanent ban.

→ Leave through an official port of entry (airport) — not land borders or informal crossings.

→ Keep all documentation: your departure order, fine receipts, departure stamp.

→ After 1–5 years (depending on your specific ban), consult a Korean immigration lawyer about re-application.

→ Avoid future consultancy fraud — research agencies carefully before paying fees.

14. Quick Reference — Emergency Contacts

Service	Phone	Website / Notes
Embassy of Nepal, Seoul	+82 (02) 3789-9770 / 9771	kr.nepalembassy.gov.np
Korea Immigration Service	1345 (24/7, multilingual)	www.immigration.go.kr
Korea Legal Aid Corporation	132	www.klac.or.kr
Seoul Global Centre	+82-2-2075-4180	global.seoul.go.kr
HiKorea (permit applications)	—	www.hikorea.go.kr
TOPIK Registration	—	www.topik.go.kr
Emergency (Police/Fire/Ambulance)	112 / 119	—

This guide was compiled using the Korean Immigration Control Act, official Korea Immigration Service regulations, HiKorea portal data, and reporting from The Korea Herald, The Annapurna Express, and other sources as of May 2026. Laws and regulations change — always verify current rules at www.immigration.go.kr or www.hikorea.go.kr before taking action.